Ashcombe Advisory Partners LLC

www.ashcombeadvisory.com

April 18, 2022

Sandra Mcdaniel
Director of Operations
Kirby-Taylor

Re: Engagement for a media relations program

Dear Sandra:

Thank you for the time you and your colleagues have given us over the past several weeks, and for the candor with which you described how Kirby-Taylor is covered today. This letter confirms the terms on which Ashcombe Advisory Partners LLC ("Ashcombe" or "we") will provide a program of media relations to Kirby-Taylor (the "Company"). We have tried to record the work as we discussed it, and if any part of this letter differs from your understanding, we would ask you to tell us before you sign.

Purpose and scope

Our shared objective is that the reporters who follow the Company's sector describe it accurately and consistently, and that its spokespeople are well prepared when those reporters call. We propose to pursue that objective through planned and regular contact with the press over the term of the engagement.

Subject to the Company's review and approval at each stage, we expect the program to comprise the following:

- a review of the Company's recent coverage in print, online, and social channels, which will serve as the baseline against which the program is measured;
- a core set of press materials, including a company backgrounder, a fact sheet, and biographies of the Company's designated spokespeople, drawn only from information the Company has already made public or has approved for release;
- a list of target reporters and outlets, organized by beat, together with the story angles we propose to offer each of them;
- proactive outreach to those reporters, and the arrangement of the interviews and briefings that follow from it;
- a preparation session for each spokesperson before a first interview, and a short briefing note ahead of every interview thereafter; and

- a protocol for handling inbound media inquiries, with a regular written summary of our outreach and of the coverage that results.

Support for a financing, a transaction, a crisis, or another unplanned announcement is not included in this scope. We would be pleased to discuss any such work separately, and we will not undertake it without your written agreement.

Our approach

We will work through you as the Company's principal contact. Each pitch, statement, and set of talking points will reach you in draft, with a version label and a plain statement of what we are asking you to approve, and nothing will be offered to a reporter on the Company's behalf until you or your designee has approved it in writing.

Media relations for a company with investors to consider calls for particular care. We will take care that nothing we place with the press runs ahead of what the Company has disclosed publicly, and we will consult your finance and legal colleagues wherever a story touches on results, outlook, or a pending matter.

The Ashcombe team

Michael Morris, a Partner of the firm, will hold senior responsibility for the program and will review the press materials and the outreach plan before they are sent to you. Laura Bradley, a Senior Associate, will lead the work from day to day and will be your first point of contact for drafts, approvals, and scheduling.

Kimberly Le, a Communications Analyst, will monitor the Company's coverage and prepare the briefing notes your spokespeople receive before each interview. Melissa Zimmerman, also a Communications Analyst, will develop the background research and peer comparisons on which our story angles depend, and will check each draft against what the Company has already said in public.

I will remain close to the engagement and will read the principal materials before they are released. Should we wish to involve any other member of the firm, we will let you know in advance.

Fee and commencement

Our fee for the program described in this letter is $46,000. That fee covers the full scope set out above and will change only if we agree with you in writing to change the scope. The engagement will commence on April 28, 2022.

Invoicing and payment

We will invoice the fee in monthly installments over the term of the engagement, and each invoice is payable within thirty days of its date. Out-of-pocket expenses, such as media monitoring services, newswire distribution, or travel to an interview, will be billed at cost and incurred only with your prior approval.

Term and termination

We expect the program to run for approximately four months from commencement, and this letter will govern the engagement for that period and for any extension we agree in writing. Either party may end the engagement at any time by written notice to the other.

If the engagement ends before the program is complete, the Company will pay for services performed and approved expenses incurred through the date of termination, and we will deliver all work then in progress. The provisions of this letter on confidentiality and limitation of liability will survive its termination.

Confidentiality

We will hold in confidence all non-public information the Company provides to us, use it solely for this engagement, and share it only with those members of our staff who need it for the work. Each member of the team is bound by the firm's policy on material non-public information and on personal dealing in the securities of clients.

These obligations do not extend to information that is or becomes public other than through us, or that we are required by law to disclose; where the law permits, we will notify you before any such disclosure. We advise other companies, and we will not use the Company's confidential information in that work.

Limitation of liability

The Company is responsible for the accuracy of the information it gives us and for its own decisions about what it releases. We will perform our services with the care customary in our profession; we cannot, however, guarantee that any reporter will cover the Company, nor can we control what is ultimately published.

Our aggregate liability arising out of this engagement will not exceed the fees paid to us under this letter, and neither party will be liable to the other for indirect, incidental, or consequential damages.

Governing law

This letter is governed by the laws of the state in which Ashcombe maintains its principal office, without regard to that state's conflict-of-laws rules. It constitutes the entire agreement between us on its subject and may be amended only in a writing signed by both parties.

Confirming the arrangement

We look forward to working with you and your colleagues at Kirby-Taylor. If these terms are acceptable, please sign below and return a copy to me, and Laura Bradley will then contact you to arrange our first working session.

With kind regards,

_____

Julie Hill
Managing Partner
Date: April 18, 2022

Accepted and agreed on behalf of Kirby-Taylor:

_____

Sandra Mcdaniel
Director of Operations, Kirby-Taylor
Date: April 18, 2022